

Court No. - 48

Case :- WRIT - C No. - 25143 of 2021

Petitioner :- Deepak Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anurag Agrahari, Mahima Sahai

Counsel for Respondent :- C.S.C.

Hon'ble Anjani Kumar Mishra, J.

Hon'ble Chandra Kumar Rai, J.

Heard learned counsel for the petitioner and and Shri Narendra Tiwari, who has accepted on behalf of the respondents 2 and 3.

The writ petition has been filed seeking the following reliefs:-

"I- Issue a writ, order or direction in the nature of writ of mandamus commanding and directing the respondent no. 3 to restore the electricity connection of personal tube-well of the petitioner.

"II- Issue a writ, order or direction in the nature of mandamus commanding and directing the respondent no. 3 to consider and decide the representations dated 06.08.2021 regarding correction of the provisions of Clause 6.5 of the U.P. Electricity Supply Code, 2005."

The dispute pertains to an electricity connection for a tube-well, which was in the name of the grand-father of the petitioner.

Earlier, petitioner's uncle had approached this Court by means of Writ - C No. 37324 of 2019, which had been dismissed subject to certain observations, including the observation that for correction of the electricity bill the Executive Engineer be approached in accordance with the provisions contained in Clause 6.5 of the U.P. Electricity Supply Code, 2005.

Annexed along with writ petition is the application made to the Executive Engineer by the petitioner on 12.03.2001 consequent to the directions contained in the order of the writ court afore-noted.

The petitioner is aggrieved as no decision has been taken on the said representation.

The writ petition under the circumstances, is disposed of directing the Executive Engineer to consider and dispose of the representation made by the petitioner under Clause 6.5 of the U.P. Electricity Supply Code, 2005 by a reasoned and speaking order positively within a period of three weeks from the date a copy of this order is filed before him.

Order Date :- 2.11.2021/Mayank